

BEFORE THE COLORADO ADDICTION COUNSELOR PROGRAM AND THE
COLORADO BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

CASE NOS.: 2010-002624 and 2010-004865

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF THE APPLICATION FOR CERTIFICATION TO PRACTICE
CERTIFIED ADDICTION COUNSELING AND LICENSE TO PRACTICE PROFESSIONAL
COUNSELING IN THE STATE OF COLORADO OF LORI BURDICK, CAC II NO. 7156,
LPC NO. 5757 AND CAC III (Pending),

Applicant.

IT IS HEREBY STIPULATED by and between the Colorado Addiction Counselor
Program ("Director") and the Colorado Board of Licensed Professional Counselor Examiners
("LPC Board") and Lori Burdick ("Applicant") as follows:

1. By application dated August 2, 2009, Applicant applied for certification to practice as a Certified Addiction Counselor II ("CAC II") in the State of Colorado. Applicant received her CAC II certificate on May 7, 2010. By application dated January 16, 2010, Applicant applied for her license to practice as Professional Counselor ("LPC") in the State of Colorado. Applicant received her LPC license on July 15, 2010. By application dated February 25, 2011, Applicant applied for certification to practice as a Certified Addiction Counselor III ("CAC III") in the State of Colorado, and her certification request is currently pending.
2. The Director and LPC Board have jurisdiction over Applicant and the subject matter of this Stipulation and Final Agency Order ("Order").
3. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of Applicant's initial applications for certification as a CAC II and license as a LPC, and subsequent application for certification as a CAC III in the State of Colorado without the necessity of holding a formal hearing. This Order is a full and final resolution of case numbers 2010-002624 and 2010-004865. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Director, LPC Board, or Applicant, as of the effective date of this Order.
4. Applicant admits the following:
 - a. Applicant submitted an application for database listing to the Colorado State Grievance Board (now known as the Colorado Board of Registered

Psychotherapists) ("RP Board") on or about February 25, 2008. At the time Applicant submitted the application for listing, she acknowledged that she had experienced substance abuse problems and treatment in the past. This history of substance abuse problems took place when Applicant was a licensed nurse and resulted in disciplinary action by the Colorado State Board of Nursing ("Nursing Board") regarding her nursing license. Applicant entered into a Stipulation and Final Agency Order with the RP Board effective December 12, 2008 in Case No. 2008-003697 ("2008 Order"). Applicant's RP database listing was cancelled on July 15, 2010, once Applicant received her LPC.

- b. On August 2, 2009, Applicant submitted an application for certification to practice as a CAC II to the Colorado Addiction Counselor Program.
- c. On the application for certification, Applicant answered "yes" to question 1, "Have you ever been notified by any state, territory, district, country, United States government agency, or state certification/licensing board of any complaint filed against you relative to the practice of psychotherapy?"
- d. On the application for certification, Applicant answered "yes" to question 2, "Has any disciplinary action ever been taken regarding any psychotherapy/drug and alcohol services certification/license which you now hold or have ever held?"
- e. On the application for certification, Applicant answered "yes" to question 3, "Have you ever been denied a certificate/license or permission to practice psychotherapy, or permission to take an examination for licensure in any state, country, or U.S. federal jurisdiction?"
- f. On the application for certification, Applicant answered "yes" to question 7, "Are you now, or have you in the past five years been addicted to or abusive of, or been treated for addiction to or abuse, of any controlled substance, habit-forming drug, prescription, medication, or alcohol?"
- g. On the application for CAC II certification, Applicant answered "yes" to questions 1, 2, 3, and 7 regarding previous addictions and disciplinary actions.
- h. On January 16, 2010, Applicant submitted an application for license to practice as a Professional Counselor to the LPC Board.
- i. On the application for licensure, Applicant answered "yes" to question 1, "Have you ever been notified by any state, territory, district, country, United States government agency, or state certification/licensing board of any complaint filed against you relative to the practice of psychotherapy?"
- j. On the application for licensure, Applicant answered "yes" to question 2, "Has any disciplinary action ever been taken regarding any psychotherapy/drug and alcohol services certification/license which you now hold or have ever held?"

- k. On the application for licensure, Applicant answered "yes" to question 3, "Have you ever been denied a certificate/license or permission to practice psychotherapy, or permission to take an examination for licensure in any state, country, or U.S. federal jurisdiction?"
- l. On the application for licensure, Applicant answered "yes" to question 7, "Are you now, or have you in the past five years been addicted to or abusive of, or been treated for addiction to or abuse, of any controlled substance, habit-forming drug, prescription, medication, or alcohol?"
- m. On the application for Licensed Professional Counselor, Applicant answered "yes" to questions 1, 2, 3, and 7 regarding previous addictions and disciplinary actions.
- n. On or about February 25, 2011, Applicant applied for certification to practice as a CAC III in the State of Colorado, and her certification request is currently pending.
- o. On the application for certification, Applicant answered "yes" to question 1, "Have you ever been notified by any state, territory, district, country, United States government agency, or state certification/licensing board of any complaint filed against you relative to the practice of psychotherapy?"
- p. On the application for certification, Applicant answered "yes" to question 2, "Has any disciplinary action ever been taken regarding any psychotherapy/drug and alcohol services certification/license which you now hold or have ever held?"
- q. On the application for certification, Applicant answered "yes" to question 3, "Have you ever been denied a certificate/license or permission to practice psychotherapy, or permission to take an examination for licensure in any state, country, or U.S. federal jurisdiction?"
- r. On the application for certification, Applicant answered "yes" to question 7, "Are you now, or have you in the past five years been addicted to or abusive of, or been treated for addiction to or abuse, of any controlled substance, habit-forming drug, prescription, medication, or alcohol?"
- s. On the application for CAC III, Applicant answered "yes" to questions 1, 2, 3, and 7 regarding previous addictions and disciplinary actions.
- t. Applicant has admitted to a history of substance abuse and disciplinary action by the RP Board, Director, LPC Board and Nursing Board. As part of the 2008 Order, Applicant entered into a three (3) year rehabilitation contract with Peer Assistance Services (PAS) on or about October 7, 2008. The terms of the contract require her to abstain from alcohol and non-authorized drugs at all times.

- u. On July 15, 2010, Applicant entered into and is currently under a Stipulation and Final Agency Order with the Director and LPC Board ("2010 Order") that includes the terms as outlined below. This Order is a continuation of the 2010 Order and is intended to also include Applicant's CAC III certification.
5. By virtue of the facts admitted in paragraph 4 above, Applicant admits and the LPC Board and Director find that the above conduct is a violation of §12-43-222(1)(a) and (g).
6. By virtue of the admissions contained in paragraph 4, Applicant specifically agrees to accept a CAC III certificate subject to the terms and conditions outlined below. Applicant further agrees that the Director is authorized by §§12-43-212 and 12-43-224(3)(c), C.R.S., to grant Applicant a certificate. Applicant consents to the following limitations to her certificate within the meaning of §24-4-104(11), C.R.S. Applicant acknowledges that by accepting this certificate in lieu of a formal hearing, Applicant waives all remedies outlined in §§12-43-212 and 24-4-104(9), C.R.S.

PROBATION

7. Applicant's certification to practice addiction counseling and license to practice professional counseling in the State of Colorado are hereby placed on probation for three (3) years commencing from the effective date of her contract with PAS, but shall include any additional time resulting from recommended extensions of the PAS contract. During the probationary period, Applicant shall be bound by the terms and restrictions set forth in this Order.
8. Applicant currently has a contract with PAS. As a term of this Order, Applicant is required to successfully complete her PAS contract, including any recommended extensions of the contract and shall not practice addiction counseling and/or professional counseling at any time that PAS finds she is not safe to practice.
9. Applicant shall comply fully and in a timely manner with all requirements, recommendations, and directions of the PAS contract and her rehabilitation program. Requirements, recommendations, and directions include all provisions of the PAS contract signed by Applicant on October 7, 2008, and submitted to the Director and LPC Board.
10. Applicant waives any right or claim to confidentiality to any information, test result, or other data pertaining to Applicant's rehabilitation progress, or lack thereof, with PAS and will execute a release authorizing PAS or any other Director and LPC Board-approved alternative program to release any and all information pertaining to Applicant's rehabilitation program to the LPC Board and Director, upon the request of either. Applicant shall keep all releases current and in effect. Applicant shall cease the practice of addiction counseling and/or professional counseling any time that such releases are not current and in effect.
11. Applicant must immediately notify the Director and LPC Board, in writing, if she withdraws from, is removed from, is terminated from, or otherwise fails to participate

fully and satisfactorily in her approved program. Should this happen, Applicant shall immediately cease any practice of addiction counseling and/or professional counseling.

12. Applicant shall refrain from and cease any practice of addiction counseling and/or professional counseling at any time that she is determined by PAS or the Director and LPC Board to not be safe to practice addiction counseling and/or professional counseling. She shall not return to the practice of addiction counseling and/or professional counseling until PAS or an approved alternative rehabilitation program provider verifies that she can safely return to the practice of addiction counseling and/or professional counseling without risk to the public or herself.
13. PAS shall submit reports to the Director and LPC Board indicating Applicants' compliance with and progress in her rehabilitation program. These reports shall also indicate PAS's opinion as to whether she is safe to practice based on compliance with her program. Applicant shall make every effort to ensure that all reports are timely submitted to the Director and LPC Board.
14. If at any time PAS has any concerns with Applicant's compliance with her program or determines that she is not safe to practice addiction counseling and/or professional counseling based on failure to fully comply with her program, PAS shall immediately notify the Director and LPC Board. A copy of such report shall be sent to Applicant. Upon submission of such report, Applicant shall immediately cease the practice addiction counseling, and/or professional counseling.
15. The period of probation is tolled during any time that Applicant is not in full compliance with the terms and requirements of her PAS contract, and such period of probation shall resume as such time as Applicant comes into full compliance with the terms and requirements of her PAS contract.
16. Credit toward the period of probation will be given only for the period of time during which Applicant is practicing as a Certified Addiction Counselor and/or Professional Counselor in Colorado and is in full compliance with all terms of this Order.
17. If Applicant satisfactorily completes the rehabilitation program, verification to the Director and LPC Board by PAS of the satisfactory completion of the program shall be deemed sufficient, and the requirements set out herein shall be deemed satisfied, unless other information is reasonably required by the Director and LPC Board to verify her satisfactory completion of the program.
18. If, at the end of the probationary period, Applicant has adhered to all terms and conditions of this Order, Applicant may request termination of probation. Request for termination of probation must be made in writing to the Director and LPC Board, and Applicant is responsible for establishing, to the satisfaction of the Director and LPC Board, that she has satisfied all terms and conditions of probation.

TERMS AND CONDITIONS

19. Applicant will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.
20. Applicant shall not supervise or consult with other mental health providers for the purpose of those persons providing addiction counseling, and/or professional counseling, unless such supervision or consultation is monitored in accordance with this Order.
21. All expenses incurred or associated with the practice evaluation, therapy evaluation, therapy, practice monitoring, education, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Applicant and not the Director or LPC Board.
22. During the pendency of this Order, Applicant agrees that she will provide permission to and allow PAS and any other person providing treatment pursuant to her rehabilitation program and contract with PAS to provide records and information obtained in the course of completing her rehabilitation program to the Director and LPC Board. As part of this Order, Applicant expressly waives her right to maintain confidentiality of records or information provided to PAS or any other person providing treatment pursuant to her rehabilitation program and contract with PAS.
23. In the event Applicant relocates at any time during the probationary period, Applicant shall notify the Director and LPC Board of the change of address within 30 days of the effective date of such change.
24. Applicant is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §§12-43-212 and 24-4-104(9), C.R.S., and hereby waives those rights. Further, Applicant also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.
25. This Order is entered into by Applicant voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.
26. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Director and LPC Board Order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal hearing pursuant to §§12-43-212, 12-43-224, and 24-4-104(9), C.R.S.
27. Applicant acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Director and LPC Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Applicant to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

28. Applicant shall obey all state and federal laws while this Order is in effect.
29. This Order constitutes the entire agreement between Applicant and the Director and LPC Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.
30. This Order shall become effective when accepted and signed on behalf of the Director and LPC Board.
31. This Order shall be admissible as evidence at any hearing held before the Director and LPC Board.
32. This Order shall be a public record in the custody of the Director and LPC Board.

APPLICANT



LORI BURDICK
CAC II NO. 7156
LPC NO. 5757
CAC III NO. (Pending)

FOR THE DIRECTOR OF THE DIVISION OF
REGISTRATIONS AND THE COLORADO
BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS

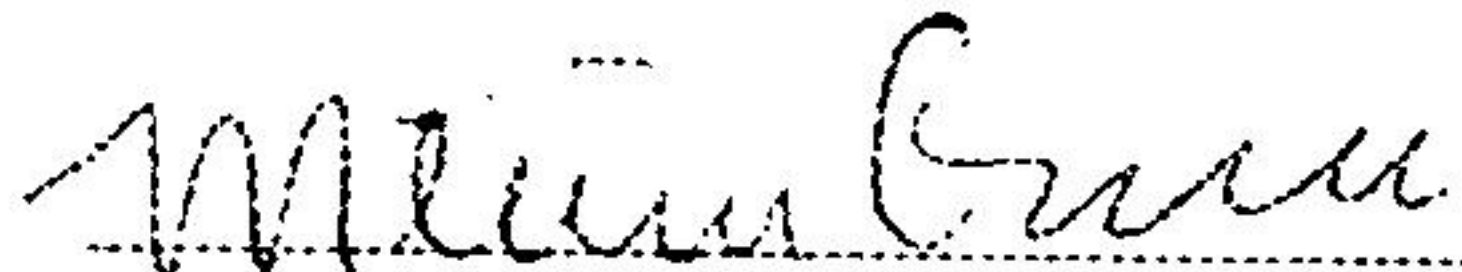


BONNE M. HINES
Program Director

Effective Date: This 12th day of
October, 2011.

CERTIFICATE OF MAILING

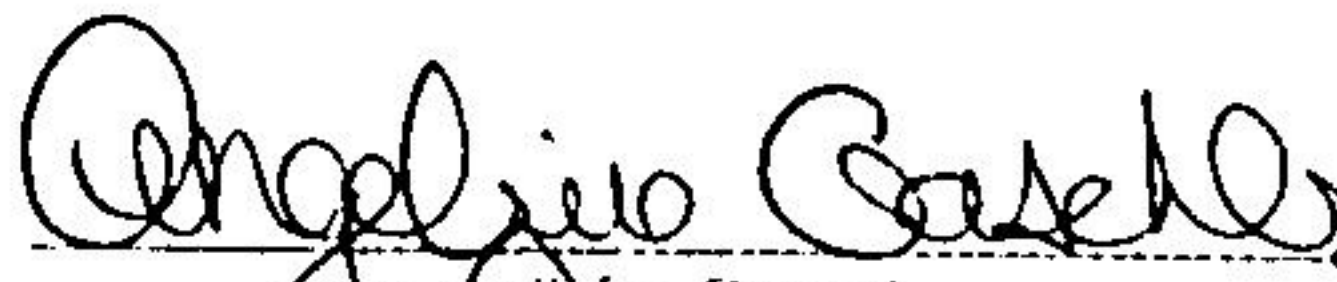
This is to certify that I have duly mailed the within STIPULATION AND FINAL AGENCY ORDER by depositing copies of same in the United States mail, first-class postage prepaid, at Denver, Colorado, this 27th day of September, 2011, addressed as follows:
Lori Burdick


Melissa Garner

CERTIFICATE OF SERVICE

This is to certify that I have duly mailed the within fully executed STIPULATION AND FINAL AGENCY ORDER upon all parties herein by depositing copies of same in the United States mail, first-class postage prepaid, at Denver, Colorado, this 17th day of October, 2011 addressed as follows:

Lori Burdick


Agent of the Board